



CENTER FOR ECONOMIC
DEVELOPMENT LAW

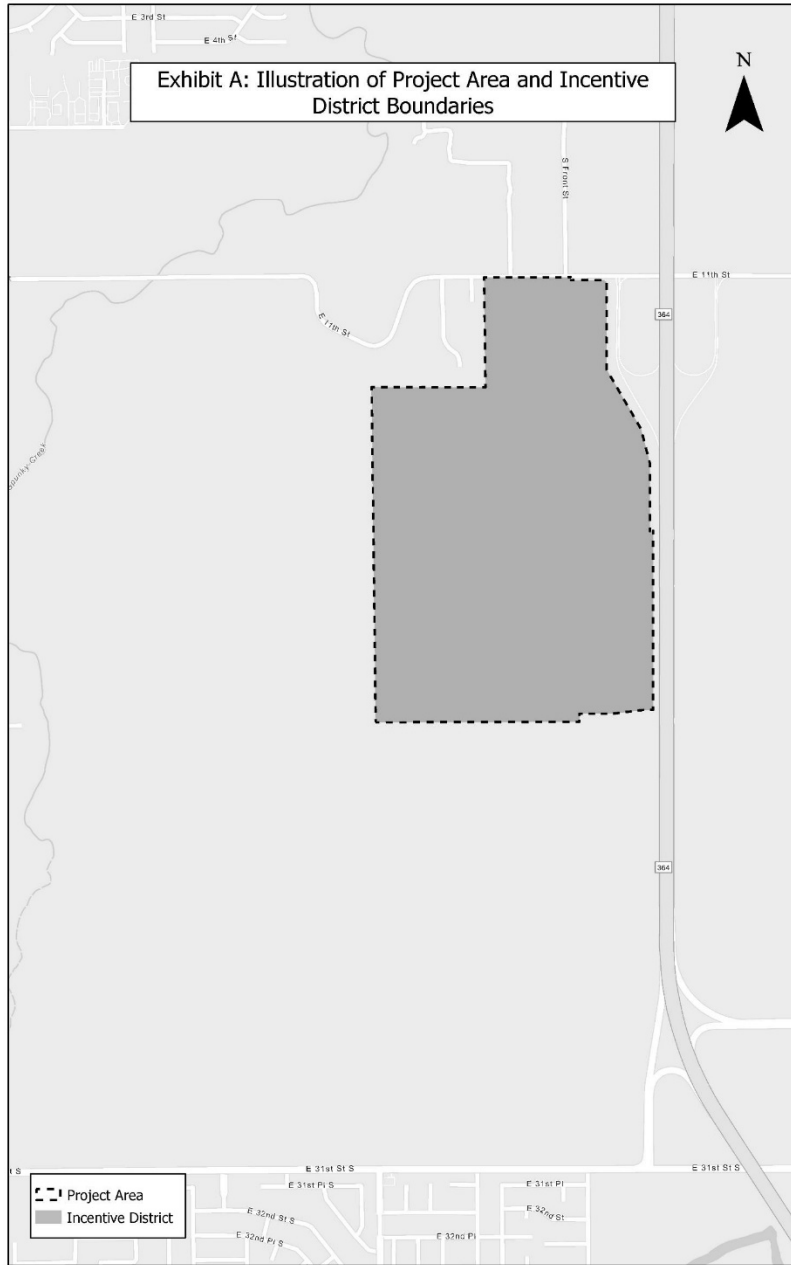


PROJECT ANTHEM
ECONOMIC DEVELOPMENT PROJECT PLAN
AND SUPPORTING INCENTIVE DISTRICT



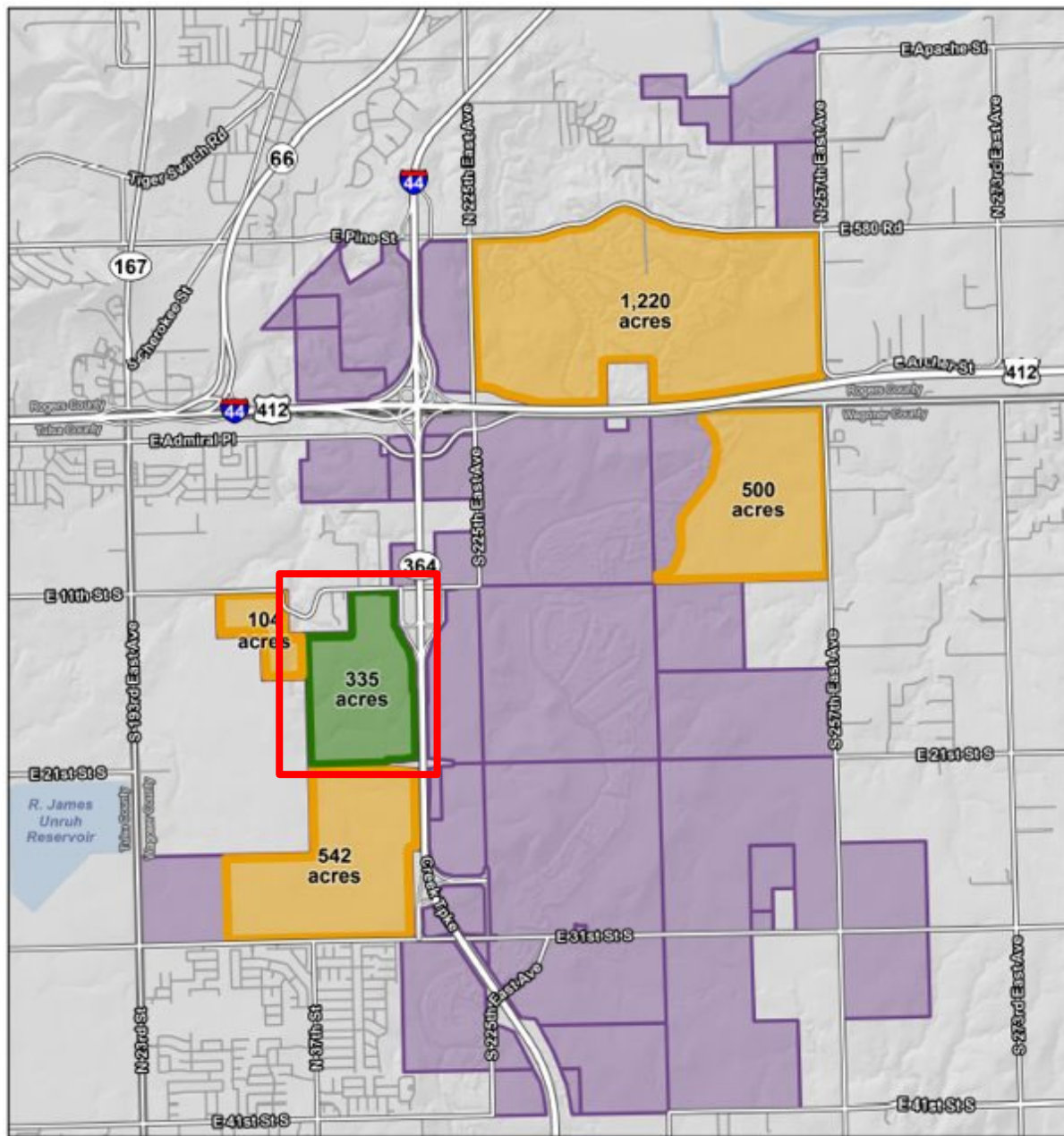
THE PROJECT

- ❖ Data center (NAICS Industry Number 518210)
- ❖ Minimum \$800,000,000 investment (likely higher)
- ❖ Fosters public-private partnership to advance Tulsa Regional Advanced Mobility (“TRAM”) project throughout eastern Tulsa and surrounding areas



LOCATION

IMMEDIATELY SOUTHWEST OF
INTERSECTION OF EAST 11TH
STREET AND CREEK TURNPIKE



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EVALUATION OF PROJECT

- ❖ Incentive request: exemption of 85% of ad valorem tax and ad valorem special assessments levied against new real and personal property investments
- ❖ 62 O.S. § 860 allows incentive district (TID) for this particular NAICS code (518210) to provide full or partial exemptions for up to 25 years
- ❖ Project would likely locate in other states absent requested incentive

PROJECT DELIVERS PUBLIC BENEFITS

- ❖ \$800,000,000+ of new investment, from which taxing entities would receive benefits as if new \$120,000,000 project created
- ❖ Modest job creation / new residents
 - 50 new positions upon completion
 - \$63,000 average wage
 - Up to \$50,000,000 direct and indirect economic activity generated
- ❖ Initial interest/infrastructure to benefit surrounding properties

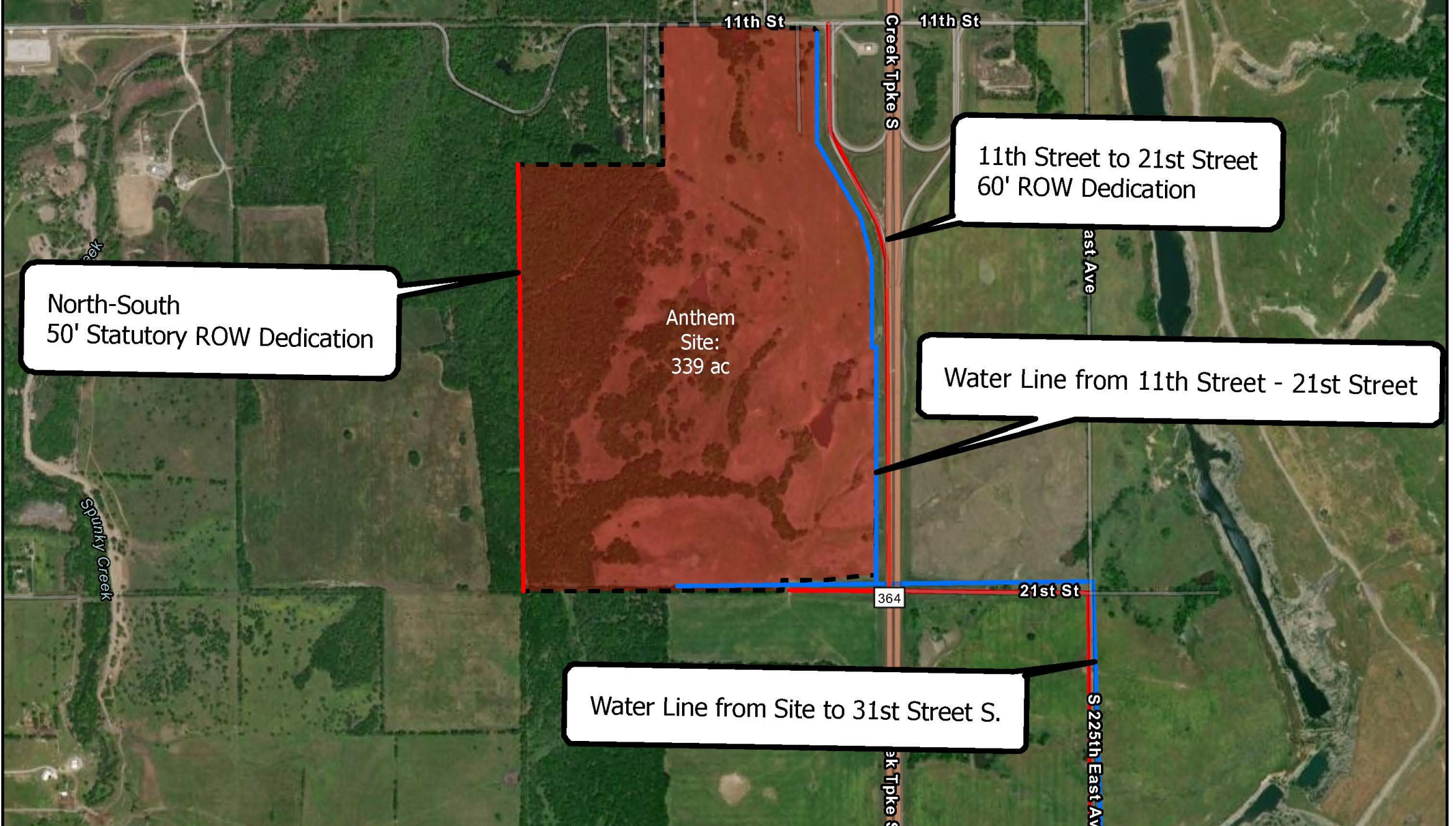
ELEMENTS OF PROJECT PLAN

- ❖ 85% exemption of ad valorem tax and ad valorem special assessments for period of 25 years
 - Entities included in exemption:
 - City of Tulsa
 - Wagoner County
 - Catoosa Public Schools
 - Tulsa Tech
 - Wagoner County Health Department
 - Rolling Hills Fire District*
 - Governing bodies of each of above entities would have to sign off on their levies being included in the exemption/TID through separate agreement prior to the City being able to approve the Project Plan

* There is an outstanding question concerning the inclusion of the project site in the fire district's boundaries.

OBJECTIVES

- ❖ Facilitate development of the Project
- ❖ Support public education and school districts by only providing partial exemption
- ❖ Support other governmental entities by only providing partial exemption
- ❖ Repurpose and activate vacant/underutilized land
- ❖ Enhance the tax base



North-South
50' Statutory ROW Dedication

Anthem
Site:
339 ac

11th Street to 21st Street
60' ROW Dedication

Water Line from 11th Street - 21st Street

Water Line from Site to 31st Street S.

TAXING ENTITY AGREEMENT

- ❖ Before TIDs can be adopted, Local Development Act requires agreement between governing bodies of City and affected taxing entities that allow for the affected taxing entities' levies to be included in the TID's incentive or exemption
- ❖ Agreement provides for taxing entities' agreement to relinquish 85% of their ad valorem taxes or special assessments on new real or personal property for the Project
- ❖ TID will be activated upon receipt by City of notice that Developer is close to completion, but no later than December 31, 2030
- ❖ County will receive annual report describing improvements made to monitor progress of Project and TID
- ❖ Coincides with agreement between City, Partner Tulsa, and the Developer that obligates Developer to construct the Project

DEVELOPMENT AGREEMENT

- ❖ Obligates company to develop:
 - ❖ \$800,000 initial investment
 - ❖ Approximately \$25 million in up front infrastructure
 - ❖ Establishes construction timeline
- ❖ Obligates the company to make annual payments to the Fair Oaks Project Fund.
 - ❖ Expected to exceed \$62.5 million over the course of the TID
 - ❖ To be used by the City to fund infrastructure to unlock adjacent sites within the Planning Area (*see next slide*).
- ❖ **Approved by TAE0 on 3.28.2024**

EXHIBIT C: PLANNING AREA DEPICTION

The map displays the Planning Area boundary in red, which encompasses a large portion of the central and eastern parts of Tulsa, Oklahoma. The area is bounded by major roads including E 580 Rd to the north, E 51st St to the south, S 4090 Rd to the west, and S 57th East Ave to the east. Key landmarks include the Lynn Lane Reservoir to the west and the Fair Oaks neighborhood to the south. Major highways shown include I-44, I-75, and US-412. The map also shows the city limits of Catoosa, Fair Oaks, and New Tulsa. A legend in the bottom left corner indicates that the red outline represents the 'Planning Area'.

City of Tulsa, Missouri Dept. of Conservation, Missouri DNR, Texas Parks & Wildlife, Esri, TomTom, Garmin, SafeGraph, GeoTechnology, Inc., METI/NASA, USGS, EPA, NPS, USDA, USFWS

GEOGRAPHY WHERE FUNDS THE
 FAIR OAKS PROJECT FUND CAN
 BE SPENT.

APPROVAL PROCESS

- ❖ Review Committee—(action expected after taxing entity action below) **(complete)**
 - Project eligibility
 - Financial impacts
 - General recommendation
- ❖ TMAPC—conformance with comprehensive plan **(complete)**
- ❖ Taxing jurisdictions (concurrently with above)—governing bodies review and consider approval of taxing entity agreement and development agreement **(complete)**
- ❖ Public notice and hearings at City Council **(under consideration)**
- ❖ City Council consideration or ordinance approving Project Plan **(under consideration)**
- ❖ TID anticipated to made effective at later date closer to project completion